J.P.Morgan

Hong Kong Property

Takeaways from legal expert call on cross-border home purchase

Mainland China/Hong Kong Property & Conglomerates

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The State Council's Regulations on Outbound Direct Investment ("Document 837") (report) have triggered investors' concerns about the eligibility of Mainland Chinese to purchase property in Hong Kong. To address the legal implications, we hosted an expert call with a Beijing-based lawyer. **Our 6 key takeaways:**

1. For Mainland Chinese, money remittance to Hong Kong for the purpose of buying property has never been—and is unlikely to be—allowed.
2. However, there is no ban on Mainland Chinese buying property in Hong Kong if the funding source is *offshore*.
3. Document 837 does not appear to be targeted at curbing Mainland Chinese purchases of property in Hong Kong.
4. Including real estate in CRS is complex and may not be realistic in the near term.
5. For Mainland Chinese classified as "Mainland tax residents", they are theoretically subject to 20% tax on rental income/capital gains from HK property, but this is not a new rule.
6. Even if some Mainland Chinese are found to have violated laws to fund purchases of HK property, penalties are likely but forced disposals are unlikely.

While we believe the overhang may persist for some time, we came out of the call marginally less concerned, as it appears Document 837 is not (at least for now) targeted at Mainland Chinese purhcases of property in HK, and the regulations are, more or less, the status quo. However, the expert call still highlighted the risk of the Chinese government potentially requiring HK-based Mainland Chinese (if defined as "Mainland tax residents") to report their offshore asset holdings (including real estate), which might be subject to additional taxes. This would then make holding HK property financially less attractive. In the HK housing market, we estimate 5-10% of all transactions (10-15% by value) are from non-HK-based Mainland Chinese buyers, who may potentially be impacted by the tighter enforcement (although if they can prove the funding source is offshore, they theoretically should not be impacted). This alone, in our view, should not derail the property upcycle (more discussion in our previous report). However, the sector is currently confronted by two other headwinds: (1) rising expectations of a rate hike (report); (2) a lackluster Hang Seng Index, which has historically shown a strong correlation to HK home prices. In the near term, we expect the sector to trade range-bound until: (1) proof of minimal impact on primary sell-through rates, secondary sales volumes and home prices; (2) easing expectations for a rate hike. In the near term, we expect **CKA/Sino** to outperform and **Henderson/NWD** to underperform. On dips, we would accumulate **SHKP**.

See page 12 for analyst certification and important disclosures, including non-US analyst disclosures.

20 Q&As from expert call

Q1) What is the background of Document 837? Why was this rolled out at this juncture?

- The introduction of Document 837 was **primarily triggered by a representative cross-border case involving a US company's proposed acquisition of a Chinese AI company**. This case raised two key regulatory concerns: **(1) individual outbound investment:** The controlling shareholder held equity offshore in a personal capacity; and (2) **technology export:** The company transferred its core operations and personnel offshore, which Chinese regulators deemed an unapproved technology export. **Document 837 represents a top-down regulatory response prompted by real-world cases.**
- **Another key driver is tax supervision.** Chinese individuals have accumulated significant offshore assets (e.g. equities), but the lack of a unified State Council–level framework previously made it difficult to coordinate supervision and tax enforcement. The new regulations aim to address this gap. Document 837 is a **framework-level policy** that consolidates existing rules across ministries, without materially changing the current regime.

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Q2) Will more explicit measures be introduced to regulate Mainland Chinese residents purchasing property in Hong Kong?

Under the current legal framework, **Mainland residents' use of <u>onshore</u> funds to purchase overseas properties (including HK) has not been formally liberalized, and no fully compliant channel exists.**

- SAFE has explicitly stated that outbound transfers for overseas property purchases (including the annual US$50,000 FX quota) under the capital account are not permitted.
- Overseas property falls under the **capital account**, which remains tightly controlled (with only limited openings for equity investments).

China's FX regime distinguishes between:

- **Current account (largely open):** trade in goods and services.
- **Capital account (restricted):** including overseas investments, lending, guarantees, and real estate.

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Q3) Under the current framework, are Mainland residents prohibited from purchasing overseas property?

The key distinction lies in **the source of funds**:

- **Onshore funds:** RMB cannot be legally converted or remitted offshore for property purchases.

- **Offshore funds:** If an individual already has legitimate offshore income (e.g., salary or investment income), and no onshore funds are involved, **overseas purchases are allowed**.

The regulatory focus is on whether the funds originate from the Chinese Mainland:

- **If no cross-border transfer of onshore funds is involved, restrictions generally do not apply.**
- If RMB is converted and remitted offshore for property purchases, it falls under restricted capital-account activity.

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Q4) For Mainland individuals working in Hong Kong, are there any restrictions on property purchases? What are the tax implications?

This needs to be analyzed from two dimensions: **FX regulation** and **taxation**.

From an FX perspective, restrictions apply only if both conditions are met:

1. The individual is still a Mainland resident (e.g., holds a Mainland ID); and
2. the funds originate from the Mainland.

If either condition is not met (e.g., use of income generated in Hong Kong), then FX restrictions typically do not apply.

From a tax perspective, the key is whether the individual is a Mainland Chinese tax resident. If so, global income (including offshore rental income and capital gains) is subject to a 20% individual income tax (with foreign tax credits to avoid double taxation). Typically, if a person still holds a Mainland Chinese *hukou* (household registration), he or she would be classified as a Mainland Chinese tax resident (long-term working/living in HK alone does not necessarily change that status).

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Q5) Will real estate be included under the common reporting standard ("CRS") in the future?

- CRS is designed for information exchange between tax authorities and financial institutions, covering financial accounts (balances, interest, dividends, etc.).
- **Real estate is currently not categorized as a financial asset under CRS.**
- Including real estate would require coordination among global property registries or a major expansion of the CRS framework, which is **operationally complex**.

However, indirect monitoring is possible:

- Account-level data may reveal large outflows or asset growth;
- tax authorities may request explanations; and
- public property registries (e.g., Hong Kong Land Registry) may enable cross-checking.

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Q6) If funds were previously transferred offshore in violation of FX rules to purchase HK property, what are the risks?

Enforcement focuses on **illegal cross-border fund transfers**, not the property purchase itself.

Common violations include:

- Underground banking channels
- Matching transactions (“对敲”)
- Aggregation of multiple USD50k quotas.

Penalties generally involve fines of approximately **5–10%** (or higher for illegal funds).

Forced disposal of offshore assets is unlikely, in practice.

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Q7) How does the Chinese government view Mainland residents holding assets in Hong Kong?

The key concern remains **compliance with capital outflows**, rather than asset location.

In practice:

- Existing offshore assets are generally treated as a *fait accompli*.
- Authorities typically do not require repatriation.
- Hong Kong is viewed as relatively more acceptable compared to other offshore jurisdictions (as it is part of China).

For corporates, however, policy tends to favor investment in strategic outbound regions (e.g., Southeast Asia, Middle East, Latin America).

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Q8) Can offshore income (e.g., IPO proceeds, stock compensation) be used to purchase property in HK?

- **Yes. Such income is generally considered legitimate offshore funds** under FX rules and can be used for offshore investment.
- However, if the individual is a Chinese tax resident, the income may still be subject to taxation in China.
- **There is currently no requirement for individuals to repatriate offshore investment income.**

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Q9) Will more detailed rules follow the Document 837?

Document 837 is a framework/coordination regulation, and further detailed rules are likely.

Its three core elements are:

- **Unified oversight of corporate ODI:** consolidating and standardizing regulation of corporate outbound investment.
- **Stronger technology export controls:** tighter rules for key areas (e.g., AI).
- **Bringing individual outbound investment into the regulatory system:** for the first time at the national level, explicitly proposing standardized management of individuals' overseas investment.

Following typical legislative practice, after the State Council issues a framework regulation, implementing agencies (NDRC, MOFCOM, SAFE, etc.) would issue supporting rules and operational guidance. Thus, regulatory standards and operational pathways—especially for individual outbound investment—are expected to become clearer. **Exact timeline is, however, uncertain.**

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Q10) After paying penalties for FX violations, are the funds considered "legal"?

- In practice, penalties apply to the FX violation itself. Once fines are paid, the funds typically remain offshore and are not required to be repatriated.

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Q11) Will Document 837 make it even harder for funds to go to Hong Kong for home purchases in the future?

- Common methods used in practice include: using the annual USD50k quota, netting/offset arrangements (or underground channels), shifting funds via service fees between related Mainland–Hong Kong companies, and using ODI structures to remit funds and then divert them to property purchases or personal use (the last one has the highest compliance risk). **Many of these are grey areas and may not be legitimate.**
- Supervision over outbound remittances is tightening, and **these channels are expected to face stricter scrutiny and higher execution difficulty.** Bank compliance reviews for cross-border transfers have become more demanding.
- In practice, "netting" risks concentrate around centralized fund flows.

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Q12) Can gifted offshore funds be used for home purchases in HK?

- Yes, if the gift (e.g. from a HK-based relative) is *genuinely* offshore and does not involve disguised cross-border transfers.

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Q13) Can company/trust structures avoid CRS or tax obligations?

- For a company structure, CRS typically focuses on the account holder and its controlling persons (e.g., shareholders). The exact disclosure depends on structuring and reporting positions, and there are relatively few public practical cases, so the effect is uncertain.

- For trusts, CRS requires reporting key parties including the settlor, trustee, and beneficiaries. There is practice showing such information can be exchanged to Mainland tax authorities and trigger inquiries.
- From a tax perspective, authorities generally apply "**substance over form**." If the main purpose of the structure is tax avoidance, tax authorities may look through it and impose tax obligations.

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Q14) Will "Property Connect" (购房通) progress?

- **"Property Connect"** (i.e. establishing a legal way for HK-based Mainland Chinese to remit funds from the Chinese Mainland for home purchases in HK) is a proposal from Hong Kong, but whether it can truly land depends on whether the Mainland side addresses the core issue: outbound fund remittance. Since FX conversion and capital-account flows are regulated on the Mainland, without Mainland policy support, Hong Kong alone cannot roll this out.
- **A pilot is not impossible under specific conditions** (e.g., limited cities, targeted groups such as high taxpayers, quota-based opening), but it would more likely be a cautious, limited pilot rather than a full opening. However, **so far there is no sign of the Chinese government pushing for "Property Connect".**

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Q15) Is RMB settlement in the Mainland for Hong Kong property purchases considered compliant?

- **Not compliant.** Regulators would view this as a cross-border transaction that is paid in FX, which is explicitly restricted under FX administration.

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Q16) Are fines limited to transferred funds? Would assets be confiscated?

- **Fines are typically calculated only on the amount of funds remitted out in violation of rules.** For example, if USD1 million was remitted out in violation, the fine is generally around 5%–10% of that amount, and does not extend to other funds that never left the Chinese Mainland.
- **As for asset disposal, public cases have not shown confiscation, forced sale, or mandatory repatriation.** Although rules (especially State Council regulations) in theory mention disposal of offshore assets/rights for illegal outbound investment, market understanding is that this mainly targets corporate ODI.

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Q17) Would there be a grace period for past violations?

- A "grace period" or "transition period" is unlikely. FX violations are generally handled under existing rules, and there has been no clear policy offering penalty waivers for voluntary disclosure.

- From a tax compliance perspective, enforcement is generally subject to a practical limitations period and typically focuses on matters arising **within the most recent 3 years**; issues from earlier periods are less likely to be pursued on a retroactive basis.

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Q18) When Document 837's implementing rules come out, could they explicitly open up overseas real estate investment, or at least mention related arrangements?

- The detailed rules are unlikely to substantively open up overseas real estate investment.
- Two possible approaches in wording: (1) ***not mentioning real estate***, maintaining the current "not opened" status; or (2) ***explicitly reiterating that overseas real estate investment is not allowed through fund remittance***. Either way, a substantive shift is not expected.

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Q19) If someone previously remitted funds out in violation of FX rules and bought a home in Hong Kong, then later canceled their Mainland identity/hukou, is there still retroactive risk?

- **Tax liability depends on when the gain is realized**. If the person is no longer a Mainland Chinese tax resident at the time of the sale, the gain may not be taxable in China.

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Q20) What are the penalties for a Mainland Chinese failing to declare rental income or capital gains from HK properties?

- Late payment charges are typically calculated at **0.05% per day**.
- Based on current practice, this is usually treated as a tax compliance matter handled by back taxes and late fees.
- There have been no cases leading to criminal punishment (e.g., imprisonment).

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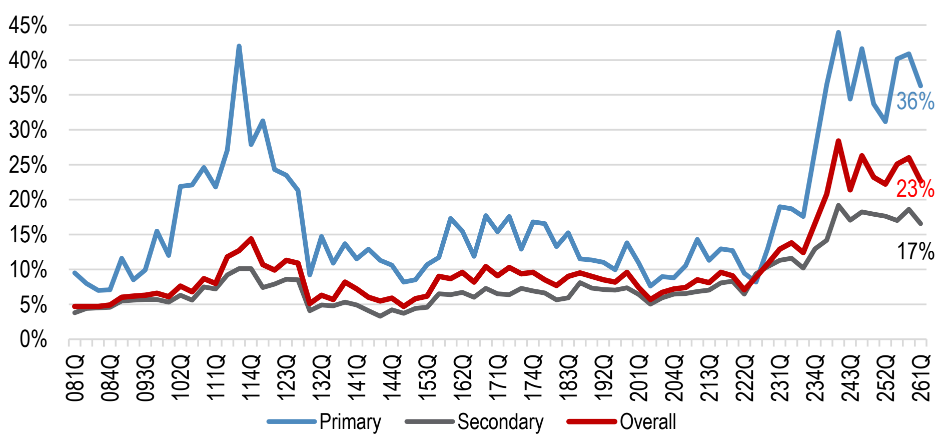
Mainland Chinese buyers in HK residential market

Table 1: HK private residential market – % of buyers who are not holders of Hong Kong Identity Card (HKID)

	Individual buyers who are not HKID holders			
	Volume (units)	as % of total	Value (HK$ bn)	as % of total
FY20/21	110	**0.1%**	1.1	**0.2%**
FY21/22	153	**0.2%**	1.6	**0.2%**
FY22/23	168	**0.3%**	1.6	**0.4%**
FY23/24	700	**1.6%**	6.8	**2.0%**
FY24/25	2,997	**5.5%**	31.3	**7.2%**

Source: HK Inland Revenue Department
Note: FY denotes HK government's fiscal year (year ending 31 March). For example, FY24/25 refers to the period from 2Q24 to 1Q25.

Figure 1: HK private residential market – % of "Mainland Chinese" buyers with a last name in Mandarin pinyin (by volume)



Source: Centaline.
Note: "Mainland Chinese" is defined here using the Mandarin pinyin of the buyer's last name and does not distinguish the buyer's current residence or identity. As a result, "Mainland Chinese" who are residing in Hong Kong—as well as local Hong Kong residents with Mandarin-pinyin last names—are also classified as "Mainland Chinese" in this dataset.

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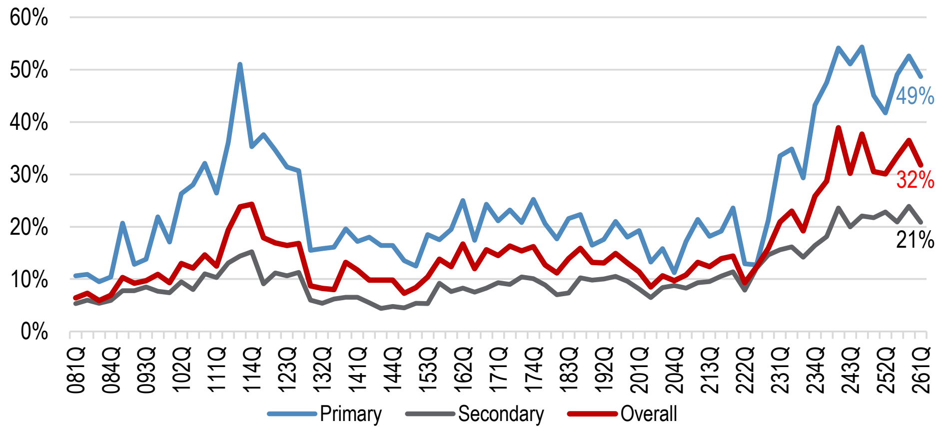
Figure 2: HK private residential market – % of "Mainland Chinese" buyers with a last name in Mandarin pinyin (by value)



Source: Centaline.
Note: "Mainland Chinese" is defined here using the Mandarin pinyin of the buyer's last name and does not distinguish the buyer's current residence or identity. As a result, "Mainland Chinese" who are residing in Hong Kong—as well as local Hong Kong residents with Mandarin-pinyin last names—are also classified as "Mainland Chinese" in this dataset.

Table 2: Personal cross-boundary remittance regulations from Mainland China to Hong Kong SAR

Category	Quota	Details
Facilitative foreign exchange arrangement 購匯便利化額度	US$50,000 per person per year	Directly conduct currency conversion at Mainland banks with identity document and remit outside the Mainland. If a remitter prefers not to use the quota / the conversion quota is reached, remitter shall provide the bank with supporting documents for verification of the use of funds (e.g. travel, study abroad, daily life, and medical care.)
Payment Connect 跨境支付通	Follow the facilitative foreign exchange arrangement (US$50,000 per year)	Real-time and small-value cross-boundary remittances at participating institutions in the Mainland
Withdraw cash using debt/credit cards issued in Mainland	Annual limit of RMB100,000, and a daily limit of RMB10,000	
Cross-border cash carrying	Rmb 20,000 per person per trip; or USD 5,000 for foreign currency	

Source: HKMA

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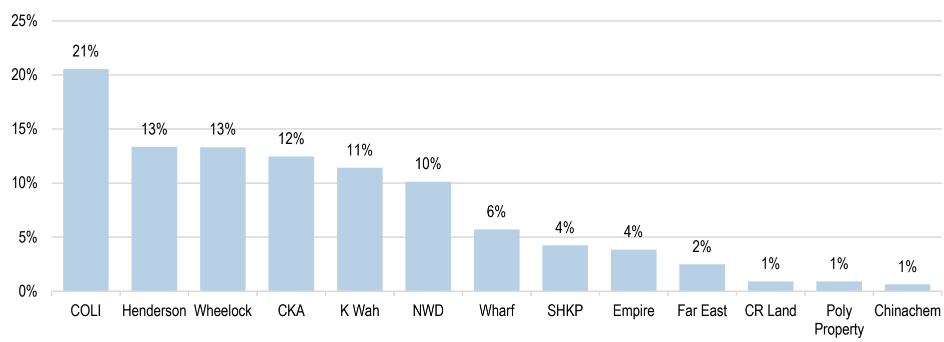
Districts with the most "Mainland Chinese" buyers in Hong Kong

Table 3: Top 5 districts ranked by no. of Mainland Chinese buyers (primary units) since the lifting of the additional stamp duties (Mar 2024 to Feb 2026)

District		Total	Primary	Secondary
Kai Tak	啟德	**3,050**	2,786	264
Wong Chuk Hang	黃竹坑	**1,162**	1,131	31
Cheung Sha Wan / Sham Shui Po	長沙灣/深水埗	**1,376**	838	538
Tseung Kwan O	將軍澳	**1,544**	777	767
Central & Western	中西區	**1,971**	731	1,240

Source: Midland
Note: "Mainland Chinese" is defined here using the Mandarin pinyin of the buyer's last name and does not distinguish the buyer's current residence or identity. As a result, "Mainland Chinese" who are residing in Hong Kong—as well as local Hong Kong residents with Mandarin-pinyin last names—are also classified as "Mainland Chinese" in this dataset.

Figure 3: Developers' exposure in Kai Tak Runway Area based on attributable number of unsold units



Source: Centaline, J.P. Morgan
Note: For projects involving a consortium, we assume an equal split among the developers.

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Valuation Summary

Table 4: Hong Kong Property & Conglomerates – Valuation Summary

Company	Stock Code	JPM Rating	Last Close (HK$)	Market Cap US$M	ADV US$M	NAV Discount	P/E 1FY (x)	P/E 2FY (x)	Dvd Yield 1FY (%)	Dvd Yield 2FY (%)	P/B 1FY (x)	P/B 2FY (x)	Share Price Return 5D	Share Price Return YTD	Share Price Return 1Y	Share Price Return Peak
Hong Kong Property																
Sun Hung Kai Properties	0016.HK	OW	119.60	44,234	92.9	-43%	15.2	14.2	3.3%	3.5%	0.6	0.5	2%	27%	42%	-19%
CK Asset	1113.HK	OW	46.98	20,985	36.6	-49%	14.6	14.5	3.6%	3.6%	0.4	0.4	5%	23%	45%	-9%
Henderson Land	0012.HK	N	27.20	16,807	40.0	-56%	17.0	14.3	4.6%	4.6%	0.4	0.4	0%	-1%	6%	-22%
Sino Land	0083.HK	OW	11.20	13,703	14.0	-39%	21.9	23.5	5.2%	5.2%	0.6	0.6	-2%	11%	43%	-16%
New World Development	0017.HK	N	7.67	2,464	6.8	-61%	-11.5	-9.0	0.0%	0.0%	0.1	0.1	4%	6%	44%	-87%
Wharf Holdings	0004.HK	NC	19.41	7,571	13.7	-	13.0	12.4	2.1%	2.2%	0.4	0.4	-5%	-10%	-16%	-37%
Kerry Properties	0683.HK	NC	19.91	3,688	5.5	-	14.2	6.8	6.8%	6.8%	0.3	0.3	0%	3%	9%	-20%
Developers					**53.7**	**-41%**	**15.4**	**14.5**	**3.8%**	**3.8%**	**0.5**	**0.5**	**1%**	**16%**	**32%**	**-20%**
Swire Properties	1972.HK	OW	21.66	15,916	10.2	-54%	15.5	14.0	5.6%	5.8%	0.5	0.5	0%	7%	23%	-18%
Wharf REIC	1997.HK	N	22.50	8,719	15.0	-59%	10.8	10.9	5.7%	5.7%	0.4	0.4	-1%	-6%	13%	-50%
HK Land (in US$)	HKLD.SI	OW	7.44	15,955	22.9	-44%	34.7	32.8	3.5%	3.7%	0.5	0.5	3%	10%	37%	-17%
Hang Lung Properties	0101.HK	OW	7.75	5,002	9.9	-72%	12.3	11.5	6.7%	6.7%	0.3	0.3	1%	-6%	18%	-61%
Hysan	0014.HK	NC	17.28	2,265	6.3	-	8.4	10.0	6.3%	6.3%	0.3	0.3	-2%	-5%	28%	-40%
Landlords					**15.1**	**-51%**	**20.4**	**19.2**	**5.1%**	**5.2%**	**0.4**	**0.4**	**1%**	**4%**	**26%**	**-29%**
Link REIT	0823.HK	N	36.98	12,188	54.3	-	14.7	14.7	6.6%	6.7%	0.6	0.6	1%	10%	-3%	-43%
Fortune REIT	778.HK	NC	4.79	1,258	1.8	-	26.8	26.8	7.2%	7.2%	0.4	0.4	2%	1%	11%	-31%
Champion REIT	2778.HK	NC	2.38	1,864	0.4	-	19.3	19.3	5.9%	6.1%	0.4	0.4	1%	-4%	29%	-46%
REITs					**43.4**	**-**	**16.3**	**16.3**	**6.6%**	**6.7%**	**0.5**	**0.5**	**1%**	**8%**	**2%**	**-43%**
Hong Kong Property (Overall)					**42.1**	**-40%**	**16.9**	**16.0**	**4.4%**	**4.5%**	**0.5**	**0.5**	**1%**	**12%**	**28%**	**-24%**
CK Hutchison	0001.HK	OW	70.05	34,243	70.3	-38%	9.1	11.2	4.4%	3.5%	0.5	0.4	5%	35%	51%	-10%
Jardine Matheson	JARD.SI	OW	66.00	19,456	25.9	-43%	11.0	10.5	3.7%	3.9%	0.6	0.6	8%	-1%	49%	-18%
Swire Pacific	19.HK	NC	83.55	13,154	12.4	-	10.1	9.2	4.8%	5.1%	0.4	0.4	2%	37%	28%	-9%
Conglomerates					**46.0**	**-40%**	**9.9**	**10.6**	**4.3%**	**3.9%**	**0.5**	**0.5**	**5%**	**25%**	**46%**	**-12%**

Source: Bloomberg Finance L.P., J.P. Morgan estimates.
Note: Share prices as of 15 Jun 2026. Bloomberg consensus estimates for Not Covered (NC) companies. Past performance is not an indicator of future results.

Companies Discussed in This Report (all prices in this report as of market close on 15 June 2026, unless otherwise indicated)
CK Asset Holdings Ltd (1113)(1113.HK/HK$46.98/OW), Henderson Land Development (0012)(0012.HK/HK$27.20/N), New World Development (0017)(0017.HK/HK$7.67/N), Sino Land (0083)(0083.HK/HK$11.20/OW), Sun Hung Kai Properties (0016)(0016.HK/HK$119.60/OW)

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CK Asset Holdings Ltd (1113) (1113.HK, 1113 HK) Price Chart

Source: Bloomberg Finance L.P. and J.P. Morgan; price data adjusted for stock splits and dividends.
Initiated coverage Jun 03, 2015. All share prices are as of market close on the previous business day.

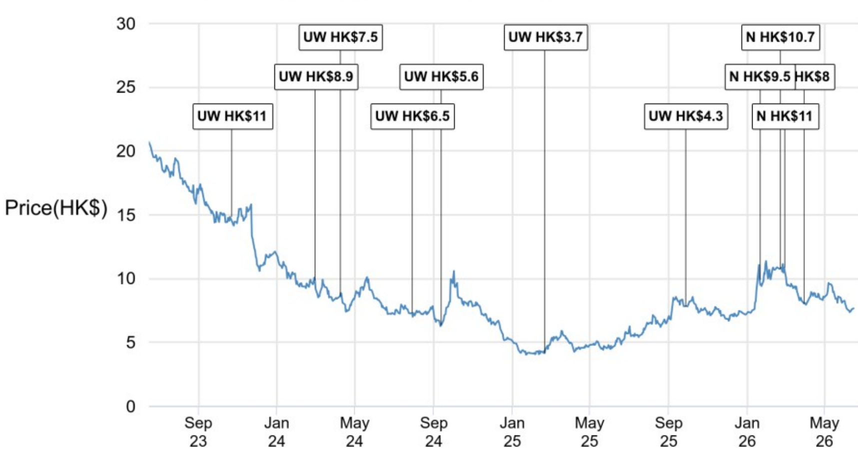
Date	Rating	Price (HK$)	Price Target (HK$)
24-Oct-23	OW	39.25	45
22-Mar-24	N	36.80	34.5
09-Apr-24	N	32.45	32
01-Apr-25	N	31.45	31
15-Jul-25	N	35.05	33
15-Aug-25	N	38.00	36
21-Jan-26	N	43.34	41
22-Feb-26	N	46.80	48.5
31-Mar-26	OW	43.78	52

Henderson Land Development (0012) (0012.HK, 12 HK) Price Chart

Source: Bloomberg Finance L.P. and J.P. Morgan; price data adjusted for stock splits and dividends.
Initiated coverage Mar 21, 2001. All share prices are as of market close on the previous business day.

Date	Rating	Price (HK$)	Price Target (HK$)
24-Oct-23	N	20.55	19.5
22-Mar-24	N	23.00	23
09-Apr-24	OW	22.70	26.5
22-Aug-24	OW	21.65	25
15-Jul-25	OW	26.00	31
21-Jan-26	OW	31.12	33
22-Feb-26	OW	33.68	39
24-Mar-26	OW	30.02	35
31-Mar-26	N	29.10	30

New World Development (0017) (0017.HK, 17 HK) Price Chart



Source: Bloomberg Finance L.P. and J.P. Morgan; price data adjusted for stock splits and dividends.
Initiated coverage Sep 13, 2000. All share prices are as of market close on the previous business day.

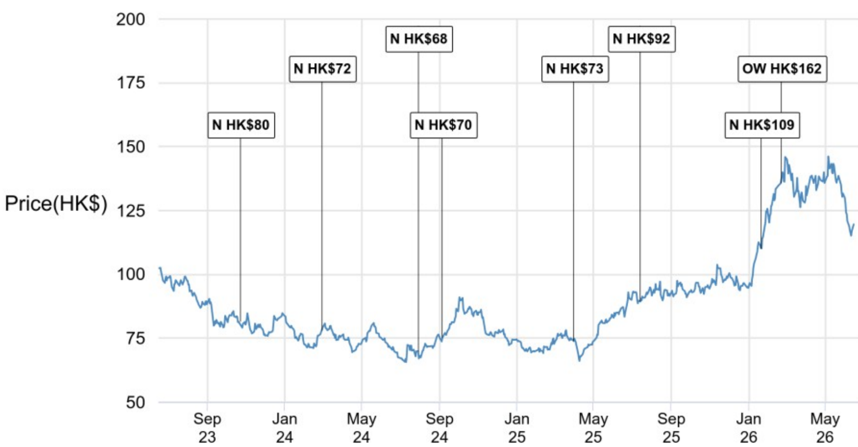
Date	Rating	Price (HK$)	Price Target (HK$)
24-Oct-23	UW	14.84	11
01-Mar-24	UW	9.87	8.9
09-Apr-24	UW	8.61	7.5
30-Jul-24	UW	7.31	6.5
13-Sep-24	UW	6.34	5.6
21-Feb-25	UW	4.16	3.7
28-Sep-25	UW	7.84	4.3
21-Jan-26	N	9.90	9.5
22-Feb-26	N	10.76	10.7
01-Mar-26	N	10.86	11
31-Mar-26	N	8.05	8

Sino Land (0083) (0083.HK, 83 HK) Price Chart

Source: Bloomberg Finance L.P. and J.P. Morgan; price data adjusted for stock splits and dividends.
Initiated coverage May 04, 2000. All share prices are as of market close on the previous business day.

Date	Rating	Price (HK$)	Price Target (HK$)
24-Oct-23	OW	8.60	10
28-Aug-25	OW	9.26	11
21-Jan-26	OW	11.29	12.5
22-Feb-26	OW	12.76	14.5

Sun Hung Kai Properties (0016) (0016.HK, 16 HK) Price Chart



Source: Bloomberg Finance L.P. and J.P. Morgan; price data adjusted for stock splits and dividends.
Initiated coverage Jan 16, 2000. All share prices are as of market close on the previous business day.

Date	Rating	Price (HK$)	Price Target (HK$)
24-Oct-23	N	81.50	80
29-Feb-24	N	78.00	72
30-Jul-24	N	69.90	68
06-Sep-24	N	75.15	70
01-Apr-25	N	73.90	73
15-Jul-25	N	89.40	92
21-Jan-26	N	110.20	109
22-Feb-26	OW	135.70	162

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